



CHAPTER 11

An Act to repeal certain enactments relating to the Isle of Man; to empower the Court of Tynwald to make provision with regard to customs and harbours; to provide for the payment to the Isle of Man of a share of certain duties; and for purposes connected therewith.
[20th February, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The enactments specified in Part I of the Schedule to this Act (being enactments making provision for the application of the duties of customs collected in the Isle of Man, the variation of those duties and of harbour dues, the borrowing of money by the Government and other authorities of the Island, and, so far as they apply to the Isle of Man, for the regulation of mines and quarries in the Island) are hereby repealed to the extent specified in the third column of that Part; and the enactments specified in Part II of that Schedule (which confer power on the Government of the Island to provide for the registration and transfer of securities created by it and power on trustees and other persons to invest in such securities but, to the extent specified in the third column of that Part, restrict those powers) are hereby repealed to the extent specified in that column.

Repeal of certain enactments relating to Isle of Man and power of Tynwald to make provision with respect to customs and harbours.

(2) The enactments specified in Part III of the Schedule to this Act (being obsolete enactments relating to the calculation of superannuation allowances payable to persons who have served both under the Government of the Isle of Man and in the civil service of the State) are hereby repealed.

(3) Provision may be made by or under an Act of Tynwald for amending or repealing the Isle of Man Harbours Acts, 1872 to 1947, and, so far as it relates to customs in the Isle of Man, any provision contained in or made by virtue of an Act of Parliament passed before the commencement of this Act.

29 & 30 Vict.
c. 23.

(4) The moneys and securities forming the Isle of Man Accumulated Fund created under section nine of the Isle of Man Customs, Harbours, and Public Purposes Act, 1866, shall be dealt with in such manner as may be provided by or under an Act of Tynwald; and until such provision is made the said moneys and securities and any income therefrom shall be applied in such manner as the Government of the Isle of Man may direct.

(5) Until other provision is made by or under an Act of Tynwald the law relating to customs in the Isle of Man and, in particular, the duties chargeable on goods removed or imported into the Isle of Man shall be the same as if this Act had not been passed.

Isle of Man
share of equal
duties.

15 & 16 Geo. 6.
& 1 Eliz. 2.
c. 44.

2.—(1) Of the moneys standing to the credit of the General Account of the Commissioners of Customs and Excise an amount ascertained for each financial year in accordance with the next following subsection shall not be paid into the Exchequer as required under subsection (3) of section eleven of the Customs and Excise Act, 1952, but shall be paid by the Commissioners, at such times and in such manner as the Treasury may direct, to the Government of the Isle of Man, together with any duties collected by them in the Island.

(2) There shall be calculated, in such manner as the Treasury may direct,—

- (a) the amount of equal duties, whether collected in the Isle of Man or in the United Kingdom, which is attributable to goods consumed or used in the Island;
- (b) the cost incurred by the Commissioners in collecting the amount so attributable and in collecting in the Isle of Man any duties other than equal duties, together with the amount of any drawback or repayment referable to the said amount or duties,

and the amount arrived at by deducting from the amount calculated under paragraph (a) of this subsection the amount calculated under paragraph (b) thereof shall be known as the net Isle of Man share of equal duties; and the amount mentioned in subsection (1) of this section is the excess of the net Isle of Man share of equal duties over the equal duties collected in the Island.

(3) The Commissioners of Customs and Excise shall for each financial year prepare, in such form and manner as the Treasury may direct, an account showing the payments made by them under this section and shall send it, not later than the end of November in the following financial year, to the Comptroller and Auditor General, who shall examine and certify it and send it, together with his report on it, to the Treasury; and the Treasury shall lay the account and report before Parliament and send copies thereof to the Government of the Island.

(4) In this section "equal duties" means—

- (a) duties of customs chargeable on goods imported or removed into the Isle of Man at rates equal to those at which duties of customs are chargeable on like goods imported into the United Kingdom or at which duties of excise are chargeable on like goods produced in the United Kingdom;
- (b) duties of customs chargeable on goods imported into the United Kingdom or duties of excise chargeable on goods produced in the United Kingdom at rates equal (in either case) to those at which duties of customs are chargeable on like goods imported or removed into the Isle of Man;
- (c) purchase tax chargeable in either country at rates equal to those at which it is chargeable in the other.

3. This Act may be cited as the Isle of Man Act, 1958.

Short title.

Section 1.

SCHEDULE

ENACTMENTS REPEALED

PART I

Session and Chapter	Short Title	Extent of Repeal
29 & 30 Vict. c. 23.	The Isle of Man Customs, Harbours, and Public Purposes Act, 1866.	The whole Act.
35 & 36 Vict. c. 77.	The Metalliferous Mines Regulation Act, 1872.	The whole Act so far as it applies to the Isle of Man.
38 & 39 Vict. c. 39.	The Metalliferous Mines Regulation Act, 1875.	The whole Act so far as it applies to the Isle of Man.
43 & 44 Vict. c. 8.	The Isle of Man Loans Act, 1880.	The whole Act except sections six and seven.
50 & 51 Vict. c. 5.	The Isle of Man (Customs) Act, 1887.	The whole Act.
51 & 52 Vict. c. 39.	The Public Works Loans Act, 1888.	Section eight.
54 & 55 Vict. c. 47.	The Metalliferous Mines (Isle of Man) Act, 1891.	The whole Act.
57 & 58 Vict. c. 42.	The Quarries Act, 1894 ...	The whole Act so far as it applies to the Isle of Man.
60 & 61 Vict. c. 51.	The Public Works Loans Act, 1897.	Section ten.
21 & 22 Geo. 5. c. 38.	The Isle of Man Loans Act, 1931.	The whole Act.
3 & 4 Eliz. 2. c. 17.	The Isle of Man (Customs) Act, 1955.	The whole Act.

PART II

Session and Chapter	Short Title	Extent of Repeal
43 & 44 Vict. c. 8.	The Isle of Man Loans Act, 1880.	In section six the words "with the approval of the Treasury", the words "created in pursuance of this Act" and the words "acting with the approval of the Treasury."
56 & 57 Vict. c. 53.	The Trustee Act, 1893 ...	In section seven the words "under this Act."
11 & 12 Geo. 5. c. 58.	The Trusts (Scotland) Act, 1921.	In section five, in subsection (4), the words "under the Isle of Man Loans Act, 1880."
15 & 16 Geo. 5. c. 19.	The Trustee Act, 1925 ...	In section twelve, in subsection (3), the words "under the Isle of Man Loans Act, 1880."
		In section five, in subsection (5), the words "under the Isle of Man Loans Act, 1880."

PART III

SCH.
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Session and Chapter	Short Title	Extent of Repeal
39 & 40 Vict. c. 43.	The Isle of Man (Officers) Act, 1876.	The whole Act.
45 & 46 Vict. c. 46.	The Isle of Man (Officers) Act, 1882.	The whole Act.

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